

mask. The complainant stated that she could not wear one for health reasons and was asked to provide a medical certificate. She showed the employee a photo of the certificate on her phone, which also contained a diagnosis, and was then granted access. The employee stated that he had been instructed to require medical certificates, especially since the respondent could face a fine in the event of a police check. The respondent was not authorized to collect health data and thus considered her right to confidentiality violated.

2. In a statement dated June 2, 2021, the respondent essentially stated that by requesting a medical confirmation, it wanted to ensure that an exemption from wearing a mouth-nose protection was indeed present. The presentation of a medical diagnosis was not required and was also not of interest. This procedure was in accordance with the applicable legal requirements, particularly the 4th COVID-19 Protection Measures Regulation. According to § 19 of this regulation, proof of the existence of an exemption from the obligation to wear a mouth-nose protection for health reasons had to be provided to the respondent as the operator of a business (N*** Shop) by presenting a medical confirmation. Through the requested and currently provided proof, the respondent fulfilled this obligation imposed on it in accordance with § 19 para. 3 of the mentioned regulation in conjunction with § 8 para. 4 COVID-19-MG; otherwise, it would commit an administrative offense. For the sake of completeness, it should be noted that such evidence is only viewed and not stored, and no information about it is recorded.

3. In a statement dated June 9, 2021, the complainant summarized that merely communicating the fact that she was unable to wear a mouth-nose protection constituted a sensitive personal data. The fundamental right to confidentiality is protected constitutionally as well as by the EU General Data Protection Regulation. Due to the primacy of EU law, conflicting national laws such as the COVID-19 Measures Act and the COVID-19 Protection Measures Regulations must be disregarded and cannot be enforced. All authorities entrusted with enforcement—whether public servants or authorized entities like the respondent—must refrain from applying these norms; otherwise, they would be liable for violations of data protection. The data in question should not have been collected.

B. Subject of the Complaint

The subject of the complaint is the question of whether the respondent violated the complainant's right to confidentiality.

C. Findings of Fact

1. The respondent is a stock corporation with the commercial register number FN *12*4*a.

Evidence Assessment: The findings are based on an official search by the Data Protection Authority in the commercial register.

2. The complainant visited a business location of the respondent in 10*0 Vienna on May 4, 2021. The complainant did not wear a mouth-nose protection. She was therefore asked by an employee of the respondent to wear one.

medical certificate to demonstrate that she was unable to wear a mouth-nose protection for health reasons. The complainant showed the employee her relevant medical certificate – which also included the diagnosis concerning the complainant – in the form of a photo on her mobile phone.

Assessment of Evidence: The findings made are essentially based on the undisputed statements of the complainant.

D. From a legal perspective, it follows:

1. Applicable Legal Provisions

§ 3

COVID-19-MG

reads

with

heading

as

follows

(emphasis by the Data Protection Authority):

Access and Use of Business Premises and Workplaces as well as Use of Means of Transport

§ 3. (1) In the event of the occurrence of COVID-19, regulations may be issued to:

1. regulate access to and use of business premises or only certain business premises for the purpose of purchasing goods or utilizing services,
2. regulate access to and use of workplaces or only certain workplaces according to § 2 para. 3 of the Employee Protection Act (ASchG) by persons who are employed there, and
3. regulate the use of means of transport or only certain means of transport, as far as this is necessary to prevent the spread of COVID-19.

(2) A regulation according to para. 1 may specify, depending on the epidemiological situation, the number and timing or the conditions and requirements under which business premises or workplaces may be accessed and used or means of transport may be used. Furthermore, access to and use of business premises or workplaces as well as the use of means of transport may be prohibited if milder measures are insufficient.

§ 19 of the 4th COVID-19-SchuMaV in the version applicable at the time of the complaint reads with heading as follows (emphasis by the Data Protection Authority):

Proof of Credibility

§ 19. (1) The existence of the requirements according to §§ 2 and 17 must be credibly demonstrated upon request to:

1. organs of the public security service,
 2. authorities and administrative courts during party traffic and official acts, as well as
 3. holders of a business premises or a workplace and operators of a means of transport in order to fulfill their obligation according to § 8 para. 4 COVID-19-MG.
- (2) The exception reason, whereby wearing a respiratory mask of protection class FFP2 (FFP2 mask) without an exhalation valve, or a mask with at least an equivalently standardized standard or a mechanical protective device covering the mouth and nose area that fits closely cannot be reasonably required for health reasons, as well as the existence of a pregnancy, must be proven by a confirmation issued by a doctor authorized to practice independently in Austria.
- (3) If the existence of an exception reason according to para. 1 no. 3 has been credibly demonstrated, the holder of the business premises or the workplace as well as the operator of a means of transport has fulfilled their obligation according to § 8 para. 4 of the COVID-19-MG.

2. Regarding the Respondent

The respondent is a stock corporation, a private law enterprise, and – contrary to the assertions of the complainant – is not entrusted with sovereign tasks or endowed with public authority.

Thus, the respondent is a responsible entity in the private sector.

3. Regarding the Right to Confidentiality

According to § 1 para. 1 DSG, everyone has the right to confidentiality of their personal data, provided there is a legitimate interest in it. The existence of such an interest is excluded if data are not accessible to a confidentiality claim due to their general availability or because they cannot be traced back to the affected person.

The GDPR and, in particular, the principles enshrined therein must be considered in the interpretation of the right to confidentiality (cf. the decision of the DSB of October 31, 2018, GZ DSB-D123.076/0003-DSB/2018).

In the present case, the scope of application of § 1 para. 1 DSG is opened, as the information on the complainant's medical certificate relates to her.

Moreover, it undoubtedly concerns health data within the meaning of Art. 4 no. 15 GDPR.

Apart from that, for the scope of application of § 1 para. 1 DSG, a specific form of processing is not relevant (finding of the Administrative Court of February 28, 2018, Ra 2015/04/0087 with references). Restrictions on the right to confidentiality are permissible according to § 1 para. 2 DSG when personal

data are used in the vital interest of the affected person, the affected person has given their consent (or in the terminology of the GDPR: approval), when there is a qualified legal basis for the use, or when the use is justified by overriding legitimate interests of a third party.

According to Art. 9 para. 1 GDPR, the use of categories of data that are particularly worthy of protection by their nature is only permissible under strict conditions, namely according to those of Art. 9 para. 2 GDPR. Accordingly, according to § 9 para. 2 lit. i, processing is lawful if it is for reasons of public interest in the field of public health, such as the protection against serious cross-border...

****Health Risks or to Ensure High Quality and Safety Standards in Health Care and in Pharmaceuticals and Medical Devices, Based on Union Law or the Law of a Member State, Which Provides for Appropriate and Specific Measures to Safeguard the Rights and Freedoms of the Affected Person, Particularly Professional Secrecy, is Necessary.****

4. In the Matter

The Respondent invokes § 19 4. 4. COVID-19-SchuMaV in conjunction with § 8 para. 4 COVID-19-MG.

It must therefore be examined whether a qualified legal basis exists:

From the above-cited provision of § 3 COVID-19-MG, it is evident that access to business premises can be regulated by ordinance and that, depending on the epidemiological situation, the conditions and requirements under which business premises may be accessed can be determined.

The Federal Minister for Social Affairs, Health, Care, and Consumer Protection has made use of this authorization as the competent Federal Minister for Health in accordance with § 7 para. 1

COVID-19-MG and has issued the 4th COVID-19-SchuMaV, whereby § 19 leg. cit. is particularly relevant in this context. According to para. 2 of the same provision, as seen above, the exception reason, according to which wearing a respiratory mask cannot be reasonably required for health reasons, must be evidenced by a confirmation issued by a doctor authorized to practice independently in Austria.

The scope and application of § 19 4. COVID-19-SchuMaV is, in any case, clear and precise, and the respective consequences for affected persons are recognizable from the wording of these norms (cf. Recital 41 second sentence GDPR). The respective employee of the Respondent directly responsible for the control of the medical certificate is, in accordance with § 6 para. 1 DSG - without prejudice to other legal confidentiality obligations - obliged to keep confidential personal data that has been entrusted to him or made accessible solely due to his professional employment. Thus, appropriate and specific measures to safeguard the rights and freedoms of the Complainant are provided.

The obligation to provide evidence in the form of a medical confirmation stating that wearing a respiratory mask cannot be reasonably required for health reasons serves to prevent the spread of COVID-19 and thus to maintain public health. This is particularly important, as otherwise anyone could claim the existence of such a reason and refuse to wear a respiratory mask.

In this context, wearing a respiratory mask in enclosed spaces - especially considering the high rate of new infections at the time relevant to the complaint - appears to be an essential measure to counteract the spread of COVID-19 and to prevent an overload of the Austrian health system or an impending collapse of medical care or a similarly situated emergency situation - this would have fatal consequences for society as a whole.

Therefore, this important public interest certainly outweighs the interest of the Complainant in not having to disclose her personal health data when entering a business premises without a mouth-nose protection.

It must be assumed that the legal obligation imposed on the owners of a business premises to control evidence of the existence of a medical confirmation was the least intrusive means to ensure the maintenance of public health as effectively as possible. No less intrusive means to achieve this goal is apparent to the Data Protection Authority in this context.

The Complainant's assertion that the 4th COVID-19-SchuMaV and the COVID-19-MG should not be applied due to the constitutionally protected right to confidentiality and conflicting EU law is unfounded. This is particularly true since the provision of § 19 para. 2 4. COVID-19-SchuMaV relevant here constitutes a permissible restriction within the meaning of § 1 para. 2 DSG and Art. 9 para. 2 lit. i

GDPR.

In consideration of all these statements, the Data Protection Authority concludes that the data processing in question can be based on § 19 para. 2 4. COVID-19-SchuMaV and that this represents the least intrusive means. Thus, there is lawful data processing in accordance with Art. 9 para. 2 lit. i GDPR. There is no violation of the Complainant's right to confidentiality by the Respondent. It was therefore decided accordingly.